

PASSED

CHICKASAW TRIBAL LEGISLATURE

PERMANENT RESOLUTION NO. 91-14
Amendment to Election Rules and Regulations
Regarding Authority

- WHEREAS, the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal property subject to federal law and for enacting rules and regulations pertaining to the Chickasaw Nation, and
- WHEREAS, Governor Bill Anoatubby, chief executive officer of the tribe, or his designee, is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and
- WHEREAS, the authority for rules and regulations regarding elections was given to the Chickasaw Nation Tribal Legislature by Article VII, Section 6, of the Constitution, and
- WHEREAS, this authority should be properly notated, and
- WHEREAS, Part 6, Article 1, Section 1 of the Election Rules and Regulations of the Chickasaw Nation is the only reference to such authority, and
- WHEREAS, such authority should be notated under Part one, Article I, Section 1 of the Election Rules and Regulations of the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends the Election Rules and Regulations of the Chickasaw Nation in the following manner:

1. Deleting all of Section 1 of Part Six, Article I - Special Election:

~~Section 1: Procedures and Regulations~~

~~In accordance with Article VII, Section 6 of the Constitution of the Chickasaw Nation, the tribal legislature shall prescribe procedures and regulations for tribal elections.~~

2. Inserting the same under Part One, Article I, Section 1 - General Purpose and Election Commission; renaming the same Authority for Procedures and Regulations, wherewith the remaining sections shall be renumbered accordingly:

Section 1: Authority for Procedures and Regulations

In accordance with Article VII, Section 6 of the Constitution of the Chickasaw Nation, the tribal legislature shall prescribe procedures and regulations for tribal elections.

Section 2: Procedures and Regulations

These procedures and regulations are adopted for the purpose of conducting tribal elections as required by the Constitution of the Chickasaw Nation of Oklahoma.

Section 3: Election Date

The election date shall be the first Monday of August of each year. "Election date" is the date ballots shall be mailed to the voters.

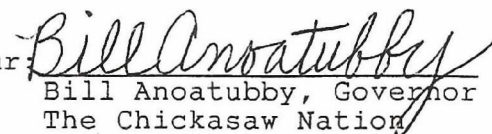
BE IT FURTHER RESOLVED, that these changes to the Election Rules and Regulations of the Chickasaw Nation shall become effective immediately upon concurrence by the governor, and that the Chickasaw Election Commission shall incorporate these changes into the Election Rules and Regulations of the Chickasaw Nation as quickly as is practicable.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Sulphur, Oklahoma, on June 21, 1991, by a vote of 12 ayes, 0 nays, and 0 abstentions.

Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: June 27, 1991
Bill Anoatubby, Governor
The Chickasaw Nation